

GAHC010088342019



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

WP(C) 2148/2016

1: BHUBANESWAR KALITA and 2 ORS.

S/O- LT. LAKHI RAM KALITA

R/O VILL.- MOHINA

P.O.- MOHINA

DIST.- NALBARI

ASSAM. PRESIDENT OF OPPOSED COMMITTEE

INCLUSION OF ADDITIONAL VILLAGE IN B.T.A.D.

NALBARI DISTRICT.

2: NAREN DAS

S/O- LT. GAGEN DAS

R/O VILL. and P.O.- BALITARA

DIST.- NALBARI

ASSAM.

3: MAZID ALI CHOUDHURY

S/O- MD. MUKIB ALI

R/O VILL.- MAJUSIRAL

P.O.- KHATIKUCHI

DIST.- NALBARI

ASSAM

BOTH ARE JOINT SECY. TO THE OPPOSED COMMITTEE

INCLUSION OF ADDL. VILLAGE IN B.T.A.D.

NALBARI DISTRICT.

VERSUS

1: THE UNION OF INDIA and 5 ORS

REP. BY THE SECRETARY BM MINISTRY OF HOME AFFAIRS

GOVT. OF INDIA

NEW DELHI.

2: ASSAM STATE ELECTION COMMISSION

REP. BY THE CHIEF ELECTION COMMISSIONER

ASSAM

DISPUR
GHY- 6.

3:THE STATE OF ASSAM
REP. BY THE CHIEF SECY. TO THE GOVT. OF ASSAM
DISPUR
GHY- 6.

4:BODOALAND TERRITORIAL AREAS DISTRICT
HAVING ITS HEADQUARTER AT KOKRAJHAR
REP. BY THE PRINCIPAL SECY.
KOKRAJHAR
ASSAM.

5:THE DY. COMMISSIONER
NALBARI
P.O. and DIST.- NALBARI
ASSAM.

6:THE ELECTION OFFICER
NALBARI
P.O. and DIST.- NALBARI
ASSAM.

Advocate for the Petitioner : MR.J KALITA
Advocate for the Respondent : GA
ASSAM

BEFORE
HONOURABLE MR. JUSTICE SANJAY KUMAR MEDHI

ORDER

Date : 15-10-2020

Heard Shri KN Choudhury, learned Senior Counsel assisted by Shri J Kalita, learned for the petitioners and Ms. K Phukan, learned State Counsel, Assam. Also heard Ms. RB Bora, learned Standing Counsel, Bodoland Territorial Council (for short BTC).

The grievance of the petitioners in brief is inclusion of their villages in the BTC without fulfilling the requirement for such inclusion.

The learned Senior Counsel, however, fairly submits that in the affidavit filed by the

Deputy Commissioner, the apprehension of the petitioners has been stated to be incorrect and a categorical statement has been made that the concerned villages are not part of the BTC. He further contends that in the affidavit filed by the BTC, it has been stated that no decision whatsoever has been taken for inclusion of the villages concerned in BTC.

Ms. K Phukan, learned State Counsel as well as Ms. RB Bora, learned Standing Counsel who are also present, endorse the said submission.

In that view of the matter, there is no live cause of action to be adjudicated and therefore the writ petition stands closed.

It is needless to mention that in case of any grievance that may arise in future on the above subject, the petitioners would be at liberty to approach the appropriate Court of law.

JUDGE

Comparing Assistant